

TENTATIVE RULING

Case: **Dang v. California Department of Transportation**
Case No. CV-2022-1740

Hearing Date: **February 19, 2026** **Department Four** **9:00 a.m.**

Plaintiff Audrey Jade Dang's motion to strike defendant City of Davis's second affirmative defense is **DENIED**. (Code Civ. Proc., §§ 435, 436.) Plaintiff has failed to establish that a motion to strike is the proper mechanism to challenge defendant's second affirmative defense in its entirety. (Code Civ. Proc., §§ 436, 430.20; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683; see also *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Espinoza Bail Bonds v. Chuang, et al.**
Case No. CV-2021-0958

Hearing Date: **February 19, 2026** **Department Four** **9:00 a.m.**

Motion to continue trial:

The Court, in its discretion, will consider Espinoza Bail Bonds, Inc., and Jose Espinoza's late-filed opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang's request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court's determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' motion to continue trial date currently set for February 23, 2026 is **DENIED**. (Cal. Rules of Court, rule 3.1332.) The Court finds that defendants have not met their burden to show good cause for a trial continuance. (Cal. Rules of Court, rule 3.1332, subds. (b), (c)(7), (d); *Forthmann v. Boyer* (2002) 97 Cal.App.4th 977, 985, citing *Denham v. Superior Court* (1970) 2 Cal.3d 557, 566; see *Cotton v. Starcare Medical Grp., Inc.* (2010) 183 Cal.App.4th 437, 443 – 444; see generally L. Chaung Decl.) The Court further finds that Mr. Espinoza is not a party to the only remaining operative pleading in this action, plaintiff Espinoza Bail Bonds, Inc.'s first amended complaint; thus, Mr. Espinoza's standing has no relevance to any issue before the Court. (See Minute Orders, dated February 27, 2024, July 19, 2024, and December 4, 2025.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings dismissing Jose Espinoza's cross-complaint:

The Court, in its discretion, will consider Espinoza Bail Bonds, Inc., and Jose Espinoza's late-filed opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court notes that defendants Linda F. Chuang, Ronald Y. Chuang and Ted Chuang failed to properly meet and confer "in person or by telephone, or by video conference" prior to the filing of this motion for judgment on the pleadings. (Code Civ. Proc., § 439; L. Chaung Decl., ¶ 4, Exhibit A.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)